



Two Month Notice to End Tenancy Because the Tenant Does Not Qualify for Subsidized Rental Unit

Residential Tenancy Act, S. 49.1

#RTB-32Q

Tenant: This is a legal notice that could lead to you being evicted from your home

HOW TO DISPUTE THIS NOTICE TO END TENANCY

You have the right to dispute this Notice **within 15 days** of receiving it by filing an Application for Dispute Resolution with the Residential Tenancy Branch online, in person at any Service BC Office or at the Residential Tenancy Branch Office at #400—5021 Kingsway in Burnaby. If you do not apply within the required time limit, you are presumed to accept that the tenancy is ending and must move out of the rental unit by the effective date of this Notice.

To the Tenant(s): (use form RTB-26 Schedule of Parties to list additional tenants)

First and Middle Name		Last Name		
First and Middle Name		Last Name		
Main Phone Number		Alternate Phone Number		
Unit #	Street # and Name	City or Town	Province	Postal Code

From the Landlord: (use form RTB-26 Schedule of Parties to list additional landlords)

First and Middle Name		Last Name		
Main Phone Number		Alternate Phone Number		
Unit #	Street # and Name	City or Town	Province	Postal Code

I, the Landlord, give you Two Months' Notice to move out of the rental unit located at:

Unit #	Street # and Name	City or Town	Province	Postal Code
You must move out of the rental unit by:		Date (DD/MM/YYYY)		
Name of Landlord/Agent		Signature of Landlord/Agent	Date Signed (DD/MM/YYYY)	

Reason for this Two Month Notice to End Tenancy

The tenant no longer qualifies for a subsidized rental unit.

Details: Describe why the tenant no longer qualifies for the subsidized rental unit. This information is required. This Notice is not valid if details are not provided.

Complete the details below at the time of service: (not required on landlord's copy; failure to complete does not invalidate notice)

Notice served by:

In person to the tenant or agent of the tenant or with an adult over 19 who apparently lives with the tenant

Sending a copy by registered mail to the address at which the tenant resides

Leaving a copy in a mailbox or mail slot at the address where the tenant resides

Attaching a copy to the door or other conspicuous place where the tenant resides

Fax it to a number you have provided as an address for service

Email to an email address you have provided as an address for service

As ordered by the Director of the Residential Tenancy Branch (attach copy of Substituted Service Order)

Landlords should also provide a completed form #RTB-34 Proof Of Service Notice to End Tenancy as evidence of service.

IMPORTANT INFORMATION ABOUT THIS NOTICE

REQUIREMENTS FOR THIS NOTICE

1. EFFECTIVE DATE OF NOTICE

The effective date of this Notice is the date you must move out by. Your landlord must provide you with at least two months' notice and the effective date must be the last day of the rental period. For example, if you pay rent on the first day of each month, the effective date must be the last day of a month. For a fixed term tenancy agreement, the effective date cannot be earlier than the date the term ends.

2. WHEN YOU ARE CONSIDERED TO HAVE RECEIVED THIS NOTICE

You are considered to have received this notice on the day it is given to you in person (or to an adult (19+) who appears to live with you). If you were not personally served with this Notice, you are considered to have received the Notice, unless there is evidence to the contrary, on the following:

- 3 days after the landlord either leaves the Notice in the mailbox or through the mail slot; posts it on the door or a noticeable place at the address where you live; or emails/faxes it to a number you have provided as an address for service; or
- 5 days after the landlord sends the Notice by registered or regular mail to the address where you live.

Note: The date a person receives documents is what is used to calculate the time to respond; the deeming provisions do not give you extra time to respond.

3. INFORMATION FOR LANDLORDS

You can file an Application for Dispute Resolution for an Order of Possession if you believe the tenant does not intend to move out and the tenant's deadline to dispute this Notice has expired. The tenant has 15 calendar days from the date of receipt of this notice to file an Application for Dispute Resolution.

If the tenant disputes this Notice, a hearing will be held. You will have an opportunity to participate and prove that the tenancy should end for the reason you have indicated on this Notice.

An error in this Notice or an incorrect move-out date on this Notice does not make it invalid. An arbitrator can order that the tenancy ends on a date other than the date specified on this Notice.

If an arbitrator upholds this Notice, the arbitrator must grant an Order of Possession to you. If an arbitrator determines this Notice is not valid, the notice to end tenancy is canceled and the tenancy continues.

Keep copies of all Notices to End Tenancy and record each date and how the Notice was given or received.

You **MUST NOT** physically evict a tenant without a Writ of Possession, change the locks without an arbitrator's order, or seize a tenant's personal property without a Court Order.

Direct Requests: The Direct Request process is an expedited process where decisions are based on written documentation only. Direct Requests can only be submitted when the tenant does not dispute the notice to end tenancy. Specific service and proof of service requirements apply. Visit <https://www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies/solving-problems/tenancy-dispute-resolution/direct-request-process> for more information.

Residential Tenancy Branch Contact Information

Email: HSRTO@gov.bc.ca **Note: Evidence cannot be submitted by email.**

Website: www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies

Information Line: 1-800-665-8779 (toll free)

In Person: **Lower Mainland**
400-5021 Kingsway, Burnaby, BC V5H 4A5
Outside of the Lower Mainland
Visit your local Service BC location: www2.gov.bc.ca/gov/content/governments/organizational-structure/ministries-organizations/ministries/citizens-services/servicebc#locations

Your personal information is collected under section 26 (a) and (c) of the *Freedom of Information and Protection of Privacy Act* for the purpose of administering the *Residential Tenancy Act* and *Manufactured Home Park Tenancy Act*. If you have any questions regarding the collection of your personal information, please contact a Residential Tenancy Branch information officer by calling 604-660-1020 in Greater Vancouver; 250-387-1602 in Victoria; or 1-800-665-8779 elsewhere in British Columbia.